

Gaurav Beri v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · WRIT - C No. 18062 of 2022 · **Writ disposed; 6.8 objection liberty; coercive action stayed eight weeks.**

HEADNOTE

A consumer's writ against a provisional assessment order and demand was disposed of without examining merits. Liberty was granted to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, for time-bound decision after hearing, with coercive recovery stayed meanwhile.

FACTUAL SUMMARY

The petitioner, Gaurav Beri, challenged before the Allahabad High Court a provisional assessment order dated 25 May 2022, the accompanying demand notice for Rs. 6,57,720, and the inspection report relating to premises at 36/40, Kabir Nagar, Durga Kund, Varanasi. He sought certiorari to quash those proceedings and mandamus restraining their enforcement. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment

HOLDING

Without expressing any opinion on merits, a writ challenging a provisional assessment and demand is disposed of by granting the consumer liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the distribution licensee shall decide it in accordance with law after reasonable opportunity of hearing, preferably within four weeks, and no coercive action shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a provisional assessment and demand was not decided on merits; the consumer was relegated to the para 6.8 objection before the distribution licensee. ¶ 1

assessment-6.8-alternate-remedy The Court treated para 6.8 as the proper statutory route for objecting to the impugned provisional assessment and demand, with a short stay of coercive action pending that disposal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT ORDER DATED 25.05.2022 AND DEMAND OF RS. 6,57,720

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1